

An Act

ENROLLED SENATE
BILL NO. 2007

By: Wingard, Bullard, and Burns
of the Senate

and

Stinson, West (Tammy), and
Archer of the House

An Act relating to pharmacy benefits managers;
amending 59 O.S. 2021, Section 360, as last amended
by Section 8, Chapter 300, O.S.L. 2025 (59 O.S. Supp.
2025, Section 360), which relates to pharmacy
benefits manager contractual duties to provider;
requiring pharmacy benefits manager to remit certain
fees in certain situations; updating statutory
language; and providing an effective date.

SUBJECT: Pharmacy benefits managers

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 360, as last
amended by Section 8, Chapter 300, O.S.L. 2025 (59 O.S. Supp. 2025,
Section 360), is amended to read as follows:

Section 360. A. The pharmacy benefits manager (PBM) shall,
with respect to contracts between a pharmacy benefits manager and a
provider, including a pharmacy service administrative organization:

1. Include in such contracts the specific sources utilized to
determine the maximum allowable cost (MAC) pricing of the pharmacy,
update MAC pricing at least every seven (7) calendar days, and
establish a process for providers to readily access the MAC list
specific to that provider;

2. In order to place a drug on the MAC list, ensure that the drug is listed as "A" or "B" rated in the most recent version of the United States Food and Drug Administration (FDA) Approved Drug Products with Therapeutic Equivalence Evaluations, also known as the Orange Book, and the drug is generally available for purchase by pharmacies in the state from national or regional wholesalers and is not obsolete;

3. Ensure dispensing fees are not included in the calculation of MAC price reimbursement to pharmacy providers;

4. Provide a reasonable administration appeals procedure to allow a provider, a provider's representative and a pharmacy service administrative organization to contest reimbursement amounts within fourteen (14) calendar days of the final adjusted payment date. The pharmacy benefits manager shall not prevent the pharmacy or the pharmacy service administrative organization from filing reimbursement appeals in an electronic batch format. ~~The pharmacy benefits manager must~~ PBM shall respond to a provider, a provider's representative and a pharmacy service administrative organization who have contested a reimbursement amount through this procedure within ten (10) calendar days. ~~The pharmacy benefits manager must~~ PBM shall respond in an electronic batch format to reimbursement appeals filed in an electronic batch format. ~~The pharmacy benefits manager~~ PBM shall not require a pharmacy or pharmacy services administrative organization to log into a system to upload individual claim appeals or to download individual appeal responses. If a price update is warranted, ~~the pharmacy benefits manager~~ PBM shall make the change in the reimbursement amount, permit the dispensing pharmacy to reverse and rebill the claim in question, and make the reimbursement amount change retroactive and effective for all contracted providers;

5. If a below-cost reimbursement appeal is denied, the PBM shall provide the reason for the denial, including the National Drug Code (NDC) number from, and the name of, the specific national or regional wholesalers doing business in this state where the drug is currently in stock and available for purchase by the dispensing pharmacy at a price below the PBM's reimbursement price. The PBM shall include documented proof from the specific national or regional wholesalers doing business in this state showing that the drug is currently in stock and available for purchase by the

dispensing pharmacy at a price below the PBM's reimbursement price. If the NDC number provided by the ~~pharmacy benefits manager~~ PBM is not available below the acquisition cost obtained from the pharmaceutical wholesaler from whom the dispensing pharmacy purchases the majority of the prescription drugs that are dispensed, the ~~pharmacy benefits manager~~ PBM shall immediately adjust the reimbursement amount, permit the dispensing pharmacy to reverse and rebill the claim in question, and make the reimbursement amount adjustment retroactive and effective for all contracted providers;

6. If a PBM increases reimbursement for a drug, medical product, or device as a result of an appeal pursuant to this subsection, including an adjustment required pursuant to paragraph 5 of this subsection, and reduces the reimbursement amount for the same drug, medical product, or device, including the same NDC number, within thirty (30) calendar days of the appeal determination, the PBM shall remit an administrative fee not less than One Hundred Dollars (\$100.00) to the affected provider for each occurrence. If such fees are not remitted after ninety (90) calendar days, the administrative fee shall not be less than Five Hundred Dollars (\$500.00) for each occurrence. If such fees are not remitted after one hundred eighty (180) calendar days, the administrative fee shall not be less than One Thousand Dollars (\$1,000.00);

7. Any appeal that results in an increase in the reimbursement from the PBM that continues to be below the pharmacy's acquisition cost shall be considered a denial under this section. Any denial of an appeal shall follow the requirements of ~~paragraph~~ paragraphs 5 and 6 of this subsection; and

~~7.~~ 8. The PBM shall not require a pharmacy to collect additional monies following a successful below-cost reimbursement appeal from any person or entity other than the PBM who adjudicated the drug claim, including the patient or plan sponsor.

B. The reimbursement appeal requirements in this section shall apply to all drugs, medical products, or devices reimbursed according to any payment methodology, including, but not limited to:

1. Average acquisition cost, including the National Average Drug Acquisition Cost;

2. Average manufacturer price;
3. Average wholesale price;
4. Brand effective rate or generic effective rate;
5. Discount indexing;
6. Federal upper limits;
7. Wholesale acquisition cost; and

8. Any other term that a ~~pharmacy benefits manager~~ PBM or an insurer of a health benefit plan may use to establish reimbursement rates to a pharmacist or pharmacy for pharmacist services.

C. The ~~pharmacy benefits manager~~ PBM shall not place a drug on a MAC list, unless there are at least two therapeutically equivalent, multiple-source drugs, generally available for purchase by dispensing retail pharmacies from national or regional wholesalers.

D. In the event that a drug is placed on the FDA Drug Shortages Database, ~~pharmacy benefits managers~~ PBMs shall reimburse claims to pharmacies at no less than the wholesale acquisition cost for the specific NDC number being dispensed.

E. The ~~pharmacy benefits manager~~ PBM shall not require accreditation or licensing of providers, or any entity licensed or regulated by the State Board of Pharmacy, other than by the State Board of Pharmacy or federal government entity as a condition for participation as a network provider.

F. A pharmacy or pharmacist may decline to provide the pharmacist clinical or dispensing services to a patient or pharmacy benefits manager if the pharmacy or pharmacist is to be paid less than the pharmacy's cost for providing the pharmacist clinical or dispensing services.

G. The ~~pharmacy benefits manager~~ PBM shall provide a dedicated telephone number, email address and names of the personnel with decision-making authority regarding MAC appeals and pricing.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 28th day of April, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____